

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DARYL MAY, JR.,

Plaintiff,

- against -

THE CITY OF NEW YORK, RIVERBAY
CORPORATION, ELI ANOPOLSKY and
DETECTIVE SOTO

Defendants.

-----X

Index No.

Plaintiff designates
Bronx County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at
140 Debs Place (3G)
Bronx, NY 10475

County of Bronx

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 18, 2017

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
DARYL MAY, JR.
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

- The City of New York, 100 Church Street, New York, NY 10007
- Riverbay Corporation, 2049 Bartow Ave, Bronx, NY 10475
- Eli Anopolsky c/o: Co-op City Police Department, 2049 Bartow Avenue, Bronx NY 10475
- Detective Soto c/o: 45th Precinct, 2877 Barkley Ave, Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DARYL MAY, JR.,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, RIVERBAY
CORPORATION, ELI ANOPOLSKY and
DETECTIVE SOTO,

Defendants.

-----X

Plaintiff, complaining of the defendants, by his
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
December 22, 2016, the plaintiff, **DARYL MAY, JR.**, was and still
is a resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on
December 22, 2016, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
December 22, 2016, defendant, **ELI ANOPOLSKY**, (hereinafter
referred to as "**ANOPOLSKY**"), was and still is a resident of the

City and State of New York.

4. That, at all times hereinafter mentioned, and on December 22, 2016, defendant, **DETECTIVE SOTO**, (hereinafter referred to as "**SOTO**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **DARYL MAY, JR.**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on March 1, 2017, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DARYL MAY, JR.**, testified at an oral examination pursuant to the General Municipal Law on December 5, 2017; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That, at all times hereinafter mentioned, and on December 22, 2016, the defendant, **RIVERBAY CORPORATION**, (hereinafter referred to as "**RIVERBAY**"), was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

7. That, at all times hereinafter mentioned, and on December 22, 2016, the defendant **RIVERBAY**, was and still is a foreign corporation transacting business within the State of New York.

8. That at all times hereinafter mentioned and on December 22, 2016, the plaintiff, **DARYL MAY, JR.** was driving his motor vehicle with two (2) passengers who were intoxicated in said vehicle.

9. The two passengers in the aforementioned motor vehicle were fighting each other, and the plaintiff, **DARYL MAY, JR.**, got out of his motor vehicle to attempt to get someone to help.

10. Vehicle was stopped in Co-op City and thereafter various police officers and/or other agents, servants, and/or employees of the defendant and the defendants came to the scene.

11. The plaintiff, **DARYL MAY, JR.**, was thereafter arrested without probable cause without reasonable cause and without justification and taken to a holding cell and searched within premises known as Co-op City in the County of Bronx, City and State of New York.

12. The vehicle of the plaintiff, **DARYL MAY, JR.**, was additionally searched, against the wishes of the plaintiff, **DARYL MAY, JR.**, and said search was done so without justification.

13. The plaintiff, **DARYL MAY, JR.**, asked for medical treatment in the handcuffs, which are placed upon him, were too tight, and he additionally had difficulty breathing; however no medical attention was given to the plaintiff by the defendants, their agents, servants, and/or employees.

14. The plaintiff, **DARYL MAY, JR.**, was thereafter taken

to Central Booking and held against his will by the defendants, their agents, servants, and/or employees.

15. That the plaintiff, **DARYL MAY, JR.** was seen by a judge, and thereafter released.

16. That the plaintiff, **DARYL MAY, JR.** was forced to appear in Court, whereby the charges were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION

17. That, the plaintiff, **DARYL MAY, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 16 with the same force and effect as if hereinafter more fully set forth at length herein.

18. That, on December 22, 2016, the plaintiff, **DARYL MAY, JR.**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

19. That, the plaintiff, **DARYL MAY, JR.**, was assaulted/battered without justification and without cause and without excuse.

20. That, the assault/battery took place on premises known as 140 Alcott Place, First Floor, by the exit, in the County of Bronx, City and State of New York, and other locations wherein the plaintiff, **DARYL MAY, JR.**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

21. That, at all times hereinafter mentioned and on December 22, 2016, and for sometime prior thereto, defendant, **ANOPOLSKY**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

22. That, at all times hereinafter mentioned and on December 22, 2016, and for sometime prior thereto, defendant, **SOTO**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

23. That, at all times hereinafter mentioned and on December 22, 2016, and for sometime prior thereto, defendant, **ANOPOLSKY**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the said defendant, and/or defendants.

24. That, at all times hereinafter mentioned and on December 22, 2016, and for sometime prior thereto, defendant, **SOTO**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, working in the scope and course of his employment as a New

York City Police Officer, and was employed by the said defendant, and/or defendants.

25. That, the aforementioned assault and battery of the plaintiff, **DARYL MAY, JR.**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, **THE CITY**.

26. That, the aforementioned assault and battery of the plaintiff, **DARYL MAY, JR.**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**, and/or defendant, **RIVERYBAY** while working within the scope and course of the employment with the said defendant, and/or defendants.

27. That, by reason of the foregoing, the plaintiff, **DARYL MAY, JR.**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, **DARYL MAY, JR.**, has sustained damages in an amount in excess of the

jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

30. That, the plaintiff, **DARYL MAY, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 29 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the said defendant, and/or defendants.

33. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

34. That the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, was additionally negligent, reckless and careless in the

negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the said defendant, and/or defendants.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **ANOPOLSKY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

36. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **ANOPOLSKY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the said defendant, and/or defendants.

37. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SOTO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

38. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SOTO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the said defendant, and/or defendants.

39. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **ANOPOLSKY**, who was employed by the defendant, **THE CITY**.

40. That, the said defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **ANOPOLSKY**, who was employed by the defendant, and/or defendants.

41. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SOTO**, who was employed by the defendant, **THE CITY**.

42. That, the said defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SOTO**, who was employed by the said defendant, and/or defendants.

43. That, by reason of the foregoing, the plaintiff,

DARYL MAY, JR., was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

44. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

45. That, by reason of the foregoing, the plaintiff, **DARYL MAY, JR.**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

46. That the plaintiff, **DARYL MAY, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 45 with the same force and effect as if hereinafter more fully set forth at length herein.

47. That, on December 22, 2016, the plaintiff, **DARYL MAY, JR.**, was caused to be falsely arrested and falsely imprisoned without probable cause.

48. That, the plaintiff, **DARYL MAY, JR.**, was arrested without an arrest warrant.

49. That, the false arrest/false imprisonment took

place on premises known as 140 Alcott Place, First Floor by the exit, in the County of Bronx, City and State of New York, and other locations and wherein the plaintiff, **DARYL MAY, JR.** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

50. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARYL MAY, JR.**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

51. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARYL MAY, JR.**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**, and/or defendant, **RIVERBAY**.

52. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARYL MAY, JR.**, was carried out by defendant, **ANOPOLSKY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

53. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARYL MAY, JR.**, was carried out by defendant, **ANOPOLSKY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, while working within the scope and course of the employment with the said defendant, and/or defendants.

54. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARYL MAY, JR.**, was carried out by defendant, **SOTO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

55. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARYL MAY, JR.**, was carried out by defendant, **SOTO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, while working within the scope and course of the employment with the said defendant, and/or defendants.

56. That, by reason of the foregoing, the plaintiff, **DARYL MAY, JR.**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

57. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

58. That, by reason of the foregoing, the plaintiff, **DARYL MAY, JR.**, has sustained damages in an amount in excess of the

jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

59. The plaintiff, **DARYL MAY, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 58, with the same force and effect as if hereinafter more fully set forth at length herein.

60. That the plaintiff, **DARYL MAY, JR.** did not commit any illegal act, nor did the individually named defendant have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; and deprived his of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

61. That at all times hereinafter mentioned, the defendant, **ANOPOLSKY**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

62. That at all times hereinafter mentioned, the

defendant, **ANOPOLSKY**, was employed in his respective capacity by the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the said defendant, and/or defendants

63. That at all times hereinafter mentioned, the defendant, **SOTO**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

64. That at all times hereinafter mentioned, the defendant, **SOTO**, was employed in his respective capacity by the defendant, **THE CITY**, and/or defendant, **RIVERBAY**, and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the said defendant, and/or defendants.

65. Defendant, **ANOPOLSKY**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **THE CITY**, knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the

plaintiff, **DARYL MAY, JR.**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

66. Defendant, **ANOPOLSKY**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **THE CITY**, and/or defendant, **RIVERBAY**, knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the said defendant, and/or defendants has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **DARYL MAY, JR.**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

67. Defendant, **SOTO**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **THE CITY**, knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **DARYL MAY, JR.**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

68. Defendant, **SOTO**, is being sued in his personal

and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **THE CITY**, and/or defendant, **RIVERBAY**, knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the said defendant, and/or defendants has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **DARYL MAY, JR.**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

69. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DARYL MAY, JR.** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **DARYL MAY, JR.** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DARYL MAY, JR.**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DARYL MAY, JR.**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

70. That the deprivation of plaintiff's Constitutional

rights was the result of the unconstitutional acts of defendant, **ANOPOLSKY**, while acting under color of state law and within the scope of his employ.

71. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **SOTO**, while acting under color of state law and within the scope of his employ.

72. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

73. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY**, and/or defendant, **RIVERBAY's** custom and/or policy of arresting individuals without probable cause.

74. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

75. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY**, and/or defendant, **RIVERBAY's** custom and/or policy of arresting minorities without probable cause.

76. That the deprivation of plaintiff, **DARYL MAY, JR.** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

77. That the deprivation of plaintiff, **DARYL MAY, JR.** Constitutional Rights was the result of the defendant, **THE CITY**, and/or defendant, **RIVERYBAY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

78. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

79. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**, and/or defendant, **RIVERBAY**.

80. That the detaining of plaintiff, **DARYL MAY, JR.** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

81. That the detaining of plaintiff, **DARYL MAY, JR.** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**, and/or defendant, **RIVERBAY**.

82. That the deprivation of plaintiff, **DARYL MAY, JR.'s** Constitutional Rights was the result of the defendant, **ANOPOLSKY's** arrest of the plaintiff **DARYL MAY, JR.** without probable cause.

83. That the deprivation of plaintiff, **DARYL MAY, JR.'s** Constitutional Rights was the result of the defendant, **SOTO's** arrest

of the plaintiff **DARYL MAY, JR.** without probable cause.

84. That the deprivation of plaintiff, **DARYL MAY, JR.'s** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

85. That the deprivation of plaintiff, **DARYL MAY, JR.'s** Constitutional Rights was a result of the defendant, **THE CITY**, and/or defendant, **RIVERBAY's** custom and policy in failing to discipline officers for the use of excessive force.

86. That the deprivation of plaintiff, **DARYL MAY, JR.'s** Constitutional Rights was the result of **ANOPOLSKY's** use of excessive force.

87. That the deprivation of plaintiff, **DARYL MAY, JR.'s** Constitutional Rights was the result of **SOTO's** use of excessive force.

88. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DARYL MAY, JR.**

89. That the customs and/or policies adopted by the defendant, **THE CITY**, and/or defendant, **RIVERBAY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DARYL MAY, JR.**

90. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not

limited to the plaintiff's false arrest, false imprisonment, assault and battery, the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **DARYL MAY, JR.** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

91. That, by reason of the foregoing, the plaintiff **DARYL MAY, JR.** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

92. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

93. That, by reason of the foregoing, the plaintiff, **DARYL MAY, JR.**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiffs, **DARYL MAY, JR.**, demand judgment against the defendants, on the First, Second, Third and Fourth causes of action in an amount in excess of the jurisdictional limits

of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
December 18, 2017

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
DARYL MAY, JR.
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEY'S VERIFICATION

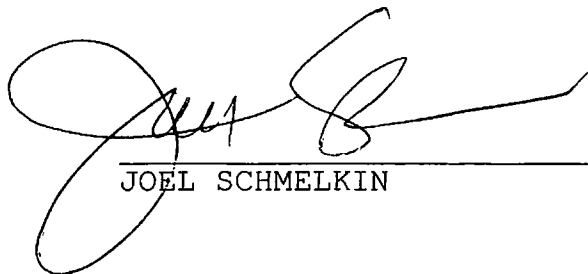
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, states, the following:

I am associated with the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiffs in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiffs because the plaintiffs do not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiffs and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
December 18, 2017



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DARYL MAY, JR.,

Plaintiff,

-against-

THE CITY OF NEW YORK, RIVERBAY CORPORATION,
ELI AN O. POLSKY and DETECTIVE SOTO,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Daryl May, Jr.

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fees earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: December 18, 2017

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

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Office and Post Office Address, Telephone
30 VESEY STREET 4TH FLOOR